

Employment Agreement

This Employment Agreement (the "Agreement") is made and effective as of August 1, 2023 (the "Effective Date") by and between UrbanWind Technologies, Inc., a Delaware corporation (the "Company"), and Olivia Martinez, an individual residing at 8351 Broadway, Oakland, CA (the "Employee").

1. Employment

The Company hereby employs the Employee as HR Manager, and the Employee hereby accepts such employment, effective as of the Effective Date. The Employee agrees to devote their full time and attention to the business and affairs of the Company and to perform such duties as are assigned to them by the Company from time to time.

2. Compensation

(a) **Base Salary:** The Company shall pay the Employee an annual base salary of \$140,000 USD, payable in accordance with the Company's standard payroll practices.

(b) **Stock Options:** The Employee shall be granted an option to purchase 15,000 shares of the Company's common stock at the fair market value on the Effective Date (the "Option"). The Option shall be subject to the terms and conditions of the Company's Stock Option Plan and a stock option agreement to be entered into between the Company and the Employee.

(c) **Benefits:** The Employee shall be eligible to participate in the Company's standard employee benefits programs, including health insurance, dental insurance, vision insurance, and 401(k) plan, subject to the terms and conditions of those programs.

3. Term and Termination

(a) **Term:** This Agreement shall commence on the Effective Date and shall continue until terminated as provided herein.

(b) **Termination for Cause:** The Company may terminate this Agreement for cause at any time upon written notice to the Employee. Cause shall include, but not be limited to:

- The Employee's material breach of this Agreement.
- The Employee's gross negligence or willful misconduct in the performance of their duties.
- The Employee's conviction of a felony or any crime involving moral turpitude.

(c) **Termination Without Cause:** The Company may terminate this Agreement without cause upon 14-days' prior written notice to the Employee.

(d) **Resignation:** The Employee may resign from their employment with the Company at any time upon 14-days' prior written notice to the Company.

4. Confidential Information

The Employee acknowledges that during their employment with the Company, they may have access to confidential information of the Company, including, but not limited to, trade secrets,

business plans, customer lists, and financial information (the "Confidential Information"). The Employee agrees that they will not, during or after their employment with the Company, disclose any Confidential Information to any third party or use any Confidential Information for their own benefit or the benefit of any third party, except as required in the performance of their duties for the Company or as otherwise authorized in writing by the Company.

5. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws provisions.

6. Entire Agreement

This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior or contemporaneous communications and proposals, whether oral or written.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

UrbanWind Technologies, Inc.



By: _____

Name: Elena Rodriguez

Title: CEO



By: Olivia Martinez

Date: 8/1/23